

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Revised Counterfactual Judgment

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** July 13, 2026

Upon panel rehearing and for the reasons stated in the revised counterfactual opinion filed today, the judgment of the fictional district court is **AFFIRMED**. The Court sustains the corrected rulings concerning the defined 7(E) implementation and guideline relations, the four causally supported 7(F) functions, completion of the contextual segregation review, and the passage-specific limited sealing arrangement.

The May 29 opinion and judgment were withdrawn when rehearing was granted and are superseded by today's opinion and this judgment. The revised disposition orders no remand, does not reopen the search, and does not authorize disclosure of a controlled counterpart. It decides only the corrected premise on the isolated docket.

Under Federal Rule of Appellate Procedure 39(a)(2), taxable appellate costs are assessed against Open Grid because the district judgment is affirmed. Each party otherwise bears its own expense of the supplemental presentation. No statement in this judgment identifies a real technique, guideline value, safety function, contact route, person, or system.

Issue-Specific Effect

The 7(E) affirmance is limited to nonpublic predicates, response ordering, implementation relationships, and guideline values supported by the required circumvention explanation. General administration remains outside that holding. The 7(F) affirmance extends only to duty assignment, contact category, safety reference, and human-linked escalation placement where the corrected worksheet supplies the stated causal connection.

The segregability affirmance rests on the complete page-linked review and the supplemental release of seventeen passages from eleven existing images. The access affirmance rests on independent passage findings, public counterparts, considered alternatives, verified disclosure-specific grants, revocation, and a finite endpoint.

These explanations describe the judgment's boundaries but add no new evidence. The judgment does not approve withholding by title, adjacency, or generalized sensitivity and does not treat a FOIA exemption as automatically sufficient to close a judicial record.

The panel is Judges Vale, Quill, and Reed. This judgment is unanimous and entirely counterfactual.

Entry and Rule 41 Notice

Teren Wye shall enter this revised judgment on July 13, 2026 and serve Tamsin Roe, Leo Marr, and Corin Pell through the isolated system. Because DOE is a United States agency, Rule 40 otherwise supplies forty-five days to seek rehearing. To provide a bounded reheard disposition, the Court expressly shortens that filing time to fourteen days under Rule 40(d)(1).

The shortened rehearing period ends July 27. The Court correspondingly directs under Rule 41(b) that, absent a timely filing or later order, mandate issue seven days afterward on August 3, 2026. This notice supplies the controlling calculation but does not itself issue mandate or assume that no authorized filing will intervene.

The mandate stay entered during panel rehearing remains effective until issuance or further order. Controlled access likewise continues under the limited arrangement. The thirty-day sealing endpoint described in the revised opinion will begin only when mandate actually issues.

Entered at the direction of the fictional composite panel on July 13, 2026. This judgment never appeared on the actual docket and has no effect beyond the isolated branch.